



The Operating System for African Business

LEGAL REVIEW & SIGN-OFF REQUIREMENTS

Controlled Pilot Launch — Republic of Zimbabwe

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Prepared for	Reviewing Legal Practitioner (Zimbabwe)
Prepared by	Dr. Washington Kapapiro — Owner, VAKA OS
Classification	Confidential — Legal Review
Companion documents	Accountant Sign-Off Pack · Black Book Sign-Off Pack · Restore Drill Runbook (OPS-RB-001) · Rollback Criteria (OPS-RC-001)

1. Purpose of This Document

VAKA OS is a cloud-based business management platform (accounting, invoicing, customer management, inventory and related modules) developed in Zimbabwe, preparing for a controlled pilot with one to two Zimbabwean businesses. Before launch, we require a formal legal review and written sign-off confirming that the pilot may proceed lawfully, or identifying the conditions that must be satisfied first.

This pack tells you, the reviewing practitioner, exactly what the system does, what data it handles, what we believe the applicable legal obligations are, and what we are asking you to confirm, correct or complete. Where our understanding of the law is wrong or incomplete, we ask that you say so plainly — this review exists to find problems before tenants are exposed to them, not to rubber-stamp the launch.

Two companion sign-off packs (Accountant Sign-Off and Black Book Sign-Off) cover accounting correctness and government-directory content respectively. This pack covers legal and regulatory matters only.

2. The System and the Pilot in Plain Terms

2.1 What VAKA OS does

- Multi-tenant, cloud-hosted business software: each customer business (a 'tenant') keeps its records in a logically isolated area of a shared system.
- Core pilot functions: customer and supplier records, quotations and invoices, receipts and payments record-keeping, a double-entry general ledger, document storage, and transactional email (e.g. sending an invoice to a tenant's customer).
- The pilot does NOT include: holding or moving client money, payment processing, lending, deposit-taking, or any function we understand to require a financial-services licence. VAKA records transactions; it does not execute them.

2.2 Pilot scope

- One to two Zimbabwean business tenants, onboarded under a written pilot agreement.
- No fees charged during the pilot (to be confirmed in the pilot agreement — if a nominal fee is charged, we will inform you as it may affect consumer-protection analysis).
- Named support owner, defined rollback criteria (OPS-RC-001), tested backup and restore procedure (OPS-RB-001).

2.3 Personal data processed

- Tenant staff: names, work email addresses, phone numbers, login credentials, activity logs.
- Tenants' customers and suppliers: names, contact details, addresses, transaction and balance histories — entered by tenants about third parties.
- Potentially employee data if a tenant uses payroll/HR features (payroll is expected to be excluded from pilot scope; please confirm the significance if it is later enabled, as employee and salary data may attract stricter treatment).
- Hosting: [TO BE COMPLETED — country/provider where the production database is hosted]. If hosting is outside Zimbabwe, we require your advice on cross-border transfer requirements under the Act.

3. Review Area A — Data Protection (Cyber and Data Protection Act [Chapter 12:07] and SI 155 of 2024)

Our current understanding, for your confirmation or correction:

- Under the Cyber and Data Protection (Licensing of Data Controllers and Appointment of Data Protection Officers) Regulations, SI 155 of 2024, entities processing personal data were required to obtain a data controller licence from POTRAZ, with tiered annual fees and 12-month validity.
- We believe VAKA acts as a data controller for tenant-staff data, and (at minimum) as a data processor for the customer/supplier data tenants enter — with each tenant being the controller of its own customers' data. We ask you to confirm the correct characterisation and whether VAKA, its tenants, or both require licensing, and at which tier.
- A Data Protection Officer may need to be appointed and registered. Please advise whether this is mandatory at our scale and who may lawfully hold the role.

We ask you to review and confirm adequacy (or specify required changes) of:

1. POTRAZ data controller licence: whether required for the pilot, which tier, and the application timeline relative to launch.
2. DPO appointment and registration requirements.
3. Our draft Privacy Notice and consent mechanics for tenant staff (attached / to be provided).
4. Data processing terms between VAKA and each tenant covering the customer/supplier data tenants enter about third parties, including the tenant's own obligations to those data subjects.
5. Data subject rights procedure: access, correction, deletion, objection — what response timelines does the Act impose, and is our procedure adequate?
6. Cross-border transfer: lawfulness of our hosting arrangement once Section 2.3 is completed, and any consent, contractual or authorisation requirements.
7. Breach notification: our obligations to POTRAZ and to data subjects on a confirmed breach — triggers, timelines and required content. Our internal rollback/incident document (OPS-RC-001) assumes affected tenants are informed within 24 hours; please confirm or correct against statutory requirements.
8. Retention and deletion: lawful retention periods for personal data after a tenant leaves, balanced against tax-record retention (Review Area D).

4. Review Area B — The Pilot Agreement

We will not onboard any tenant without a signed pilot agreement. We ask you to draft or settle this agreement. It must, at minimum, deal with the following — please advise on enforceability of each under Zimbabwean law:

1. Beta status: an honest statement that the software is in pilot, may contain defects, and is supplied without warranty of fitness, to the maximum extent the law permits disclaimers — please advise what that maximum is and any consumer-protection limits (Consumer Protection Act, 2019) that apply even to business customers.
2. Limitation of liability: a cap and exclusions that are actually enforceable, not merely copied from foreign templates. Please advise what liability cannot lawfully be excluded.

3. Data ownership: unambiguous statement that the tenant owns its business data; VAKA obtains only the licence needed to operate the service.
4. Data loss and re-entry: the agreement must disclose that a system restore may lose recently entered data (up to 24 hours per our recovery point objective) and require the tenant to re-enter it. This must be written to be fair and enforceable, not buried.
5. Confidentiality obligations on VAKA regarding tenant business information.
6. Service expectations: honest, modest availability language for a pilot; named support contact; no penalty SLA.
7. Term and termination: either party may exit on short notice; on exit, VAKA delivers the tenant's complete data in usable form (e.g. CSV/PDF export) within five business days, then deletes it per the agreed retention schedule.
8. Suspension rights: VAKA may suspend the service for security or integrity reasons per its rollback criteria.
9. Fees: none during pilot, or nominal — and what changes contractually if fees begin.
10. Governing law Zimbabwe; sensible dispute resolution (please recommend: courts vs arbitration for pilot-scale disputes).

5. Review Area C — Public-Facing Terms and Policies

1. Terms of Service and Privacy Policy: review our drafts (or advise if the pilot agreement alone suffices while the service is not publicly open for self-signup).
2. Electronic records and signatures: confirm that records kept in, and documents issued from, VAKA (invoices, statements) satisfy Zimbabwean requirements for electronic transactions and evidence, and flag anything requiring paper or wet-ink.
3. Email marketing/communications: the pilot sends transactional email only; please confirm nothing in the Act or other law imposes consent requirements on transactional messages sent on a tenant's behalf to its customers.

6. Review Area D — Financial Records and Tax-Adjacent Matters

The Accountant Sign-Off Pack covers accounting correctness. We need your legal confirmation on the boundaries:

1. Record retention: minimum statutory retention periods for accounting records and tax documents in Zimbabwe (we have assumed six years — please confirm the correct figure and source), and whether cloud-held records satisfy the form requirements of ZIMRA and the Companies and Other Business Entities Act.
2. Fiscalisation: whether anything about VAT fiscalisation / ZIMRA fiscal device and FDMS requirements constrains what our invoicing module may claim or do for VAT-registered tenants. Our position is that VAKA does not currently produce fiscal tax invoices and tenants are told so in writing — please confirm this disclaimer is sufficient and correctly worded.
3. No professional advice: wording that VAKA provides software, not accounting, tax or legal advice — including for any AI-generated suggestions the software may present. Please settle this disclaimer.
4. Licensing perimeter: confirm that recording financial transactions for tenants does not itself trigger any licensing requirement (banking, money transmission, credit reporting or similar) given the exclusions stated in Section 2.1.

7. Review Area E — Corporate, IP and General

1. Contracting entity: confirm the appropriate entity to contract through for the pilot [entity name and registration to be provided], and that it is in good standing to trade.
2. Intellectual property: confirm ownership position of the VAKA software and brand rests with the founder/entity, and advise on trademark registration for 'VAKA' / 'VAKA OS' in Zimbabwe (classes, timing, cost).
3. Third-party components: the software includes open-source components under permissive licences; advise whether anything further is required for commercial use in Zimbabwe.
4. Insurance: advise whether professional indemnity or cyber insurance is available and prudent at pilot scale in Zimbabwe.

8. Questions Requiring a Written Opinion

Please answer each in writing, however briefly. 'No issue' is an acceptable answer where true.

1. May the pilot lawfully launch before a POTRAZ data controller licence is granted, provided the application has been submitted? If not, the licence becomes a launch gate.
2. Who is controller and who is processor for each category of data in Section 2.3, and what documents must exist between the parties as a result?
3. Is our hosting arrangement (Section 2.3, once completed) lawful for Zimbabwean personal data, and on what basis?
4. What is the maximum enforceable limitation of liability for the pilot agreement?
5. What are our exact breach-notification duties (recipient, deadline, content) if tenant data is exposed?
6. Are there any laws or licensing regimes applicable to this pilot that we have not identified in this document?

9. Legal Sign-Off Certificate

To be completed by the reviewing legal practitioner. Sign-off may be granted unconditionally, or subject to the conditions recorded below. VAKA OS will not launch the pilot until every condition marked 'pre-launch' is satisfied.

9.1 Reviewer details

Full name	
Law firm / practice	
Practising certificate no.	
Law Society of Zimbabwe registration	
Areas of review covered	
Documents reviewed (list)	
Date review completed	

9.2 Findings and conditions

No.	Condition / required action	Pre-launch or post-launch?	Responsible party
1			
2			
3			
4			
5			
6			

9.3 Declaration

I confirm that I have reviewed the matters described in this document and the materials listed in 9.1. Subject to the conditions recorded in 9.2, and on the basis of the facts represented to me by VAKA OS, I am of the opinion that the controlled pilot described in Section 2 may lawfully proceed. This opinion is limited to the laws of Zimbabwe as at the date below and to the scope described in this document.

Signature:

Name (print):

Date:

Firm stamp:

9.4 Acknowledgement by VAKA OS

I acknowledge the conditions in 9.2 and undertake that no pilot tenant will be onboarded until every pre-launch condition is satisfied.

Signature — Dr. Washington Kapapiro, Owner:

Date:
